

FACILITY USE

Loudoun County Public Schools (LCPS) facilities are designed and constructed to support the educational programs of the school division. When not being used for instructional purposes, extra-curricular activities, non-curricular student clubs and/or athletic events, or LCPS administrative purposes, LCPS facilities are available for limited “per event” short-term use by other organizations and individuals as outlined in this policy in paragraphs A through C and its regulation. Long-term use of office space at the former Douglass School when deemed unneeded for the above activities, programs and purposes are governed by paragraph D of this policy and its regulation.

The Division Superintendent is authorized to promulgate regulations to implement this policy as needed and shall establish a priority of use, a fee rate structure if applicable, and rules of use. For facilities for which there are no outstanding tax-exempt bonds due, the Superintendent may assess fees in excess of actual costs to organizations.

A. Definitions.

1. Organizations. Governmental (local, state and federal official, governmental units), LCPS-related historical organizations (as defined in Regulation 6310), youth organizations, non-profit (non-commercial) organizations, and commercial (for-profit) organizations having an office or similar physical presence in Loudoun County.

- a. The organization must be one structured and managed to meet a need or pursue collective goals. Non-commercial (non-profits and religious entities) community organizations must have a management structure that determines relationships between the different activities and the members, and subdivides and assigns roles, responsibilities and authority to carry out different tasks, or,
- b. The organization must serve a commercial, professional services, or governmental purpose; or be a non-commercial community organization that promotes an educational, recreational, civic or political, the arts, or cultural purpose.

2. Individuals. Persons over the age of 18, except a minor child under 18 years of age escorted by an adult at all times is permitted.

3. Facilities. As identified in the implementing regulations, facilities are limited to school buildings, school grounds and the LCPS Administration Building conference rooms and School Board rooms not otherwise needed for any of the following uses: instructional, extra-curricular, non-curricular student clubs, or any other school or LCPS official business including, but not limited to, the meetings or activities of the School Board, its committees, sub-committees, ad hoc committees, board-

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appointed advisory groups, Minority Student Achievement Advisory Committee, Loudoun Education Foundation, a school's PTA/PTO and a school's Booster Club. These uses shall be granted first priority of use and no fees shall be charged.

B. General Rules of Organization Facility Use.

1. Organizations seeking to use LCPS facilities must apply and follow the procedures and rules set forth in the Superintendent's regulation.

2. All organizations seeking approval for use of LCPS facilities will comply with applicable laws, School Board policies, regulations and rules. Organizations shall ensure that the use of LCPS facilities for any activity or meeting, including dramas, plays, concerts, artwork or other presentations or performances is lawful at all times.

3. When using LCPS facilities, property or grounds, organizations shall not discriminate against attendees at events held on property of LCPS as prohibited by the laws or Constitution of the United States of America or the Commonwealth of Virginia. A school or building administrator is entitled to attend any activity held on LCPS property at any time. No person shall be evicted from or otherwise be removed from LCPS property by or at the request of any organization without the express approval of the LCPS facility administrator.

C. General Rules for Individual Facility Use.

1. Individual community members may only access and use outdoor school areas for their intended purposes at the times and locations provided for in the Superintendent's regulation and only when not being used for any official school or LCPS business or by an organization which has been previously approved for use. Individuals may not reserve the use of LCPS facilities or grounds.

2. Any individual who has been issued a no-trespass letter is prohibited from using facilities under this policy. The facility administrator is authorized to remove any person from LCPS property, as needed, in their discretion, to maintain order, discipline and safety of school students, staff and others.

3. The Superintendent shall promulgate regulation and rules for individual use which may include pre-registration prior to individual use.

4. Fees will not be charged for individual use.

D. Former Douglass High School. This section is intended only for long-term facility use at the former Douglass High School and does not preclude short-term facility use as described above.

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1. The former Douglass High School may house Child Find, Head Start/STEP, a Welcome Center for English Learner students and other educational programming, as well as other LCPS activities and LCPS administrative uses may change from time to time and activities administered by Loudoun County Parks and Recreation (PRCS) in the Douglass Community Center.
2. The facility may also house community activities administered by LCPS and PRCS in accordance with the accompanying regulation.
3. If office space is deemed unneeded by LCPS, it is the intent of this policy and its regulations to make these nonpublic office spaces available for limited use in accordance with the regulations and on a basis that does not open these nonpublic spaces to general public use, that serves the educational mission of the school division and that is viewpoint neutral. The details of the limited use and applicable compensation, as identified in the accompanying regulation, shall be defined in a Memorandum of Understanding executed for a time certain period. LCPS-related Historical Organizations must demonstrate a benefit to LCPS that justifies the nominal rent on the basis of good business judgment and sound business principles.
4. It is not the intent of this policy or its regulations to create a public forum of any kind. The Superintendent is directed to develop implementing regulations.

[Former Policies 6-27, 6-28, 6-29]

Adopted: 11/27/18, 1/14/21

Current Revision: 9/5/24

Legal Refs: Code of Virginia, 1950, as amended, §§[22.1-79.3](#), [22.1-131](#), [22.1-132.01](#)

Cross Ref: Regulation [6310](#)